

## 25STCV17022 25STCV17022

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Owens v. Blue Cross of California, et al.

(1) Plaintiff's Motion to Compel Further

Responses to Requests for Production of Documents from Defendant Blue Cross of California;

(2) Plaintiff's Motion to Compel Further

Responses to Form Interrogatories from Defendant Blue Cross of California

### BACKGROUND

On November 24, 2025, Plaintiff Danette Owens filed the operative first amended complaint against Defendants Blue Cross of California and LaSalle Medical Associates, asserting causes of action for (1) breach of the implied covenant of good faith and fair dealing; (2) breach of contract; (3) UCL violations; and (4) negligence. Plaintiff alleges Defendants failed to timely authorize orthopedic care for Plaintiff's severe tibial plateau fracture in bad faith.

### LEGAL STANDARD

Motion to Compel Further

Responses to Requests for Production of Documents

A propounding party may

move for an order compelling a further response to a demand for inspection if the propounding party deems that an answer or statement of compliance is evasive or incomplete, or that an objection is "without merit or too general."

(Code Civ. Proc., § 2031.310, subd. (a).) Such a motion must set forth specific facts showing good cause for the discovery sought and be accompanied by a meet and confer declaration. (Code Civ. Proc., §§ 2031.310, subd. (b), 2031.210, subd. (b).) It is the respondent's burden to justify objections in a response to a motion to compel further.

#### Motion to Compel Further Responses to Form Interrogatories

The propounding party may bring motions to compel further responses to interrogatories if it believes (1) the responses received are evasive, or (2) incomplete, or (3) if the objections raised are meritless or too general. (Code Civ. Proc., §§ 2030.300(a).)

#### DISCUSSION

Plaintiff moves to compel further responses to Requests for Production of Documents, set one, nos. 1 through 37 and Form Interrogatories, set one, nos. 50.1 through 50.6 from Defendant Blue Cross.

#### Requests for Production of Documents

The Requests for Production of Documents seek documents concerning Plaintiff, including letters, emails, notes, and audio recordings; communications about Plaintiff between Anthem and any other person or entity; coverage and insurance policies for the health plan(s) covering Plaintiff; Anthem's complete utilization review and management manuals, claims-handling policies, and training materials governing how authorization requests should be handled and investigated; documents used to train individuals involved in handling Plaintiff's requests; policies and procedures regarding coverage of orthopedic conditions related to tibial fractures; customer service policies and training materials for responding to member grievances and expedited grievances; and member complaints and grievances claiming LaSalle wrongly refused or delayed authorization.

In opposition, Defendant argues that the requests seeking documents relating to Plaintiff at any time regarding any issue as well as her plan documentation and policies related to utilization management (which was delegated to LaSalle) and customer service are overbroad and unduly burdensome. Defendant argues that the

requests seeking documents and information relating to other health plan members, Anthem's auditing and monitoring of LaSalle's delegated utilization management activities, and regulatory communications with the Department of Managed Health Care are irrelevant, overbroad and infringe on third-party privacy protections. Defendant asserts that it has agreed to provide Anthem-LaSalle contracts and related policies, procedures with financial information redacted and training materials.

The

Court finds further response is necessary. Plaintiff is entitled to all information relating to her relationship with Anthem. Documents relating to the Anthem-LaSalle contracts and relationship, policies related to utilization management (which was delegated to LaSalle) and customer service and grievances by other plan members are relevant to Plaintiff's allegations of systemic failure to investigate, unqualified reviewers, and financial incentives to deny to claims. Plaintiff requests an award of sanctions in the moving papers and notice but does not specify an amount. In order to award sanctions, the sanctions amount must be specifically requested in the motion and notice of motion in order to provide the responding party with sufficient notice. As Plaintiff has not done so here, the Court does not award sanctions.

#### Form Interrogatories

The subject Form Interrogatories seek information regarding whether Anthem can identify the documents that are part of the agreement alleged in the pleadings; whether the agreement was breached; whether performance was excused; whether the agreement was terminated; whether the agreement is unenforceable; and whether the agreement is ambiguous. Defendant objected to the requests on the ground that the phrases "the agreement" and "any agreement" are "vague and ambiguous." In opposition, Defendant asserts that the "agreement" that Plaintiff is referring to is the "Evidence of Coverage" document. Defendant argues that it cannot be made to respond to FIs characterizing the EOC as an "agreement" because it is not a contract and instead is a summary of Anthem's rules and policies. Defendant asserts that if it were to respond to the FIs, it would be admitting to a legal conclusion that the EOC is a contract, which it disputes.

The

Court finds further response is necessary. Merely responding to the FIs at

issue does not constitute a judicial admission that the EOC is a contract or not a contract. Defendant may respond to the interrogatories with a contention that the EOC is not a contract if it so chooses.

As

with the motion to compel further responses to RPDs, Plaintiff requests an award of sanctions in the moving papers and notice but does not specify an amount. In order to award sanctions, the sanctions amount must be specifically requested in the motion and notice of motion in order to provide the responding party with sufficient notice. As Plaintiff has not done so here, the Court does not award sanctions.

#### CONCLUSION

The Court grants Plaintiff's motions to compel further responses to Requests for Production of Documents and Form Interrogatories. The Court denies Plaintiff's requests for sanctions.

Defendant to serve its further responses within 30 days.

Plaintiff to give notice.